

PRISHAL TECHNOLABS PVT LTD

Patna, Bihar

LEAVE POLICY

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Human Resources Department

Prishal Technolabs Pvt Ltd

Document Control

Document Title	Leave Policy
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Owner	Human Resources Department
Approver	Director / Authorised Signatory
Applies To	All employees of Prishal Technolabs Pvt Ltd, Patna
Governing Law	Bihar Shops & Establishments (Regulation of Employment & Conditions of Service) Act, 2025; Maternity Benefit Act, 1961; National & Festival Holidays Act
Review Cycle	Annual, or upon any statutory amendment

Revision History

Version	Date	Author	Summary of Changes
1.0	_____	HR Department	Initial issue

1. Purpose

This Leave Policy ("Policy") sets out the framework governing all categories of leave available to employees of Prishal Technolabs Pvt Ltd (hereinafter referred to as "the Company"). The Policy is designed to:

- Ensure full compliance with the Bihar Shops & Establishments (Regulation of Employment & Conditions of Service) Act, 2025, the Maternity Benefit Act, 1961, and other applicable Central and State labour laws.
- Provide employees with adequate time off for rest, personal matters, illness, family responsibilities, and statutory holidays.
- Establish a transparent and uniform leave administration process that supports business continuity.
- Promote employee well-being, work-life balance, and long-term retention.

2. Scope & Applicability

This Policy applies to all permanent, full-time employees of Prishal Technolabs Pvt Ltd working at any of its offices, project sites, or remote locations within India. Specific provisions are as follows:

- **Permanent employees:** Entitled to the full range of leave benefits described in this Policy.
- **Probationary employees:** Entitled to Casual Leave and Sick Leave on a pro-rata basis. Earned Leave shall accrue but is not encashable until confirmation.
- **Contractual employees / Consultants:** Leave entitlements shall be as per the terms specified in their individual contracts.
- **Interns / Trainees:** Entitled to 1 day of leave per month of internship; statutory holidays applicable.

This Policy supersedes all earlier leave-related communications, circulars, or practices issued by the Company.

3. Definitions

- **"Calendar Year"** means the period from 1 January to 31 December.
- **"Working Day"** means any day from Monday to Saturday on which the Company is open for business, excluding declared holidays.
- **"Continuous Service"** means uninterrupted service with the Company, including periods of authorised leave, weekly offs, and notified holidays.
- **"Reporting Manager"** means the immediate supervisor under whom an employee directly reports.
- **"HR"** means the Human Resources Department of Prishal Technolabs Pvt Ltd.
- **"LOP"** means Loss of Pay — unpaid absence.
- **"EDD"** means Expected Date of Delivery (in the context of maternity leave).

4. Working Days, Hours & Weekly Off

- **Working Days:** Monday to Saturday — six (6) days per week.
- **Working Hours:** 10:15 AM to 7:00 PM, including a 45-minute break (effective 8 working hours).

- **Weekly Off:** Every Sunday is a paid weekly holiday.
- **Statutory Limits:** Working hours shall not exceed 9 hours per day or 48 hours per week, in line with Section 8 of the Bihar Shops & Establishments Act, 2025.
- **Rest Interval:** A minimum of 30 minutes break shall be provided after every 5 hours of continuous work.
- **Holidays Coinciding with Sunday:** If a National or Festival Holiday coincides with the weekly off, no compensatory off shall be granted unless specifically notified by the Company.

5. Leave Year, Accrual & Crediting

5.1 Leave Year

The Leave Year shall correspond to the Calendar Year (1 January to 31 December).

5.2 Crediting Schedule

- **Casual Leave:** Credited on a quarterly basis — 2 days at the start of each quarter (Jan, Apr, Jul, Oct), totalling 8 days per year.
- **Sick Leave:** Credited at the start of the calendar year (or pro-rata for new joiners) — 7 days per year.
- **Earned Leave:** Accrues during the calendar year and becomes available in the subsequent calendar year, subject to completion of 240 days of service.

5.3 Pro-Rata Entitlement for New Joiners

Employees joining mid-year shall be entitled to leave on a pro-rata basis as below:

Quarter of Joining	CL credited	SL credited	EL eligibility
Q1 (Jan – Mar)	8 days	7 days	After 240 days
Q2 (Apr – Jun)	6 days	5 days	After 240 days
Q3 (Jul – Sep)	4 days	4 days	After 240 days
Q4 (Oct – Dec)	2 days	2 days	After 240 days

6. Leave Entitlement — Summary

The following table summarises the statutory leave categories under this Policy:

Leave Type	Days / Year	Status	Statutory Basis
Casual Leave (CL)	8 Days	Full Pay	Mandatory (Bihar Act, 2025)
Sick Leave (SL)	7 Days	Full Pay	Mandatory (Bihar Act, 2025)
Earned Leave (EL)	18 Days	Full Pay	1 day per 20 days worked
National Holidays	3 Days	Full Pay	Mandatory

Leave Type	Days / Year	Status	Statutory Basis
Festival Holidays	8 Days	Full Pay	As per approved list
Maternity Leave	26 Weeks	Full Pay	Maternity Benefit Act, 1961
Total Annual Paid Leave (excl. Maternity & weekly offs)		44 Days	<i>Plus 52 Sundays as weekly off</i>

7. Casual Leave (CL)

7.1 Entitlement

- 8 working days per calendar year, with full pay.
- Credited quarterly: 2 days each on 1 January, 1 April, 1 July, and 1 October.

7.2 Usage Rules

- CL is intended for short-term personal needs, urgent domestic obligations, or unforeseen circumstances.
- CL may be availed for a minimum of half a day and a maximum of 3 consecutive working days at a stretch.
- CL must be applied for at least 2 working days in advance, except in genuine emergencies (which must be regularised on return).
- CL cannot be combined with Sick Leave.
- CL may be combined with weekly offs or holidays at the discretion of the Reporting Manager.

7.3 Carry Forward & Encashment

- Unused CL can be carried forward; however, any unused CL balance shall lapse at the end of the calendar year.
- CL is not encashable under any circumstances.

8. Sick Leave (SL)

8.1 Entitlement

- 7 working days per calendar year, with full pay.
- Credited at the start of the calendar year (or pro-rata for new joiners).

8.2 Usage Rules

- SL is meant for absence due to illness, injury, or medical treatment of the employee.
- Employee must intimate the Reporting Manager (via call, email, or messaging) by 10:30 AM on the first day of absence.
- **Medical Certificate:** A medical certificate from a registered medical practitioner is mandatory for any absence of 2 or more consecutive days, in line with the Bihar Shops & Establishments Act, 2025.
- SL cannot be combined with Casual Leave.

- If SL is exhausted, further illness-related absence may be adjusted against EL or treated as Loss of Pay (LOP).

8.3 Hospitalisation

In case of hospitalisation or serious illness requiring extended absence, the employee may apply for Earned Leave or a sabbatical at the discretion of the HR Head. Hospital admission/discharge documents must be submitted.

8.4 Carry Forward & Encashment

- Unused SL lapses at year-end.
- SL is not encashable.

9. Earned Leave (EL)

9.1 Eligibility & Entitlement

- Employees who have completed 240 days of service in the previous calendar year are entitled to 18 days of EL with wages in the subsequent calendar year.
- EL accrues at the rate of 1 day for every 20 days worked.
- New employees become eligible only after completing 240 days from the date of joining.

9.2 Application & Approval

- EL of up to 5 working days requires a minimum 7 working days' notice.
- EL exceeding 5 working days requires 15 working days' notice and approval from both the Reporting Manager and the Department Head.
- Maximum continuous EL allowed: 15 working days per instance, except in special cases approved by the HR Head.
- EL approval is contingent upon business requirements and team coverage.

9.3 Carry Forward & Accumulation

- Unused EL may be carried forward to the next year.
- Total accumulation shall not exceed 45 days at any point in time, in line with statutory limits.
- Any EL accrued beyond the 45-day cap shall lapse, unless otherwise encashed by the Company at year-end.

9.4 Encashment

- EL is encashable at the time of separation from the Company (resignation, retirement, or termination not for misconduct).
- Encashment formula: $(\text{Basic} + \text{Dearness Allowance}) \div 30 \times \text{Number of EL days encashable}$.
- The Company may, at its discretion, offer in-service EL encashment once a year for accrued leave above 30 days.

10. Maternity Leave (ML)

10.1 Eligibility

All women employees who have worked with the Company for at least 80 days in the 12 months preceding the Expected Date of Delivery (EDD) shall be entitled to maternity leave benefits, in line with the Maternity Benefit Act, 1961 (as amended in 2017).

10.2 Entitlement

- **First & Second Child:** 26 weeks (182 days) of paid maternity leave, of which not more than 8 weeks may precede the EDD.
- **Third Child Onwards:** 12 weeks (84 days) of paid maternity leave, of which not more than 6 weeks may precede the EDD.
- **Adoption:** 12 weeks of paid leave for women employees adopting a child below the age of 3 months.
- **Commissioning Mothers:** 12 weeks of paid leave from the date the child is handed over.
- **Miscarriage / MTP:** 6 weeks of paid leave on submission of medical certificate.
- **Tubectomy Operation:** 2 weeks of paid leave on submission of medical certificate.
- **Illness Arising Out of Pregnancy:** Up to 1 month of additional paid leave on medical certification.

10.3 Application Process

- Written application along with medical certificate to be submitted to HR at least 8 weeks before EDD.
- Final medical certificate confirming delivery to be submitted within 15 days of resumption.

10.4 Post-Return Provisions

- Two nursing breaks of 15 minutes each per working day until the child attains the age of 15 months.
- Work-from-home arrangements may be permitted (subject to role suitability and management approval) after the maternity leave period.
- No employee shall be terminated, demoted, or have her conditions of service altered to her disadvantage during the period of maternity leave.

11. National & Festival Holidays

11.1 National Holidays (Mandatory)

- Republic Day — 26 January
- Independence Day — 15 August
- Gandhi Jayanti — 2 October

11.2 Festival Holidays

8 festival holidays per calendar year shall be declared by the Company in accordance with the Bihar Government's notified holiday list. The list typically includes:

- Makars Kranti
- Holi

- Janmashtami
- Raksha Bandhan
- Vijay Dashmi
- Diwali
- Chatt Puja (2 Days)

11.3 General Rules

- HR shall publish the official Holiday List for the year by 31 December of the preceding year.
- Holidays falling on a Sunday shall not be re-credited.
- If business requirements necessitate working on a notified holiday, the employee shall be entitled to a Compensatory Off (see Section 12) or double-day wages, as applicable.

12. Compensatory Off (Comp-Off)

- Employees required to work on a Sunday or notified holiday — at the request of the Company — shall be entitled to one (1) day of Compensatory Off.
- Comp-Off must be availed within 60 days of accrual, failing which it shall lapse.
- Pre-approval from the Reporting Manager is required for working on a holiday to qualify for Comp-Off.
- Comp-Off cannot be encashed and is non-cumulative beyond the 60-day window.

13. Leave Application & Approval Process

All leave requests must follow the Company's standard approval workflow:

1. Employee submits a leave request through the designated HR system / leave application form.
2. Application is routed to the Reporting Manager for first-level approval.
3. For longer durations or specific leave types, the application is escalated to the Department Head and/or HR.
4. Final approval status is communicated to the employee via email/system notification.
5. Leave is deemed availed only after formal approval. Unauthorised absence may attract disciplinary action.

13.1 Notice Period & Approval Authority

Leave Type	Min. Notice	Approval Authority
Casual Leave (1–2 days)	2 working days	Reporting Manager
Casual Leave (3 days)	5 working days	Reporting Manager + HR
Sick Leave	Same day (before 10:30 AM)	Reporting Manager (regularise on return)

Leave Type	Min. Notice	Approval Authority
Earned Leave (≤ 5 days)	7 working days	Reporting Manager
Earned Leave (> 5 days)	15 working days	Reporting Manager + Department Head
Maternity Leave	8 weeks before EDD	HR Head

14. Leave During Notice Period

During the notice period (post-resignation or termination):

- Employees are not permitted to avail Casual Leave or Earned Leave, except with the prior written approval of the HR Head.
- Sick Leave may be availed only on submission of a valid medical certificate from a registered practitioner.
- Any unapproved leave or sickness during the notice period shall extend the notice period by an equivalent number of days.
- Buy-out of notice period (if permitted by the Company) shall be governed by the Employment Contract, not this Policy.

15. Loss of Pay (LOP)

Where an employee has exhausted all admissible leave categories, any further authorised absence shall be treated as Leave Without Pay (LOP).

- **Per-day LOP deduction:** (Monthly Gross Salary $\div$ Number of paid days in the month).
- Three or more consecutive days of unauthorised absence may be treated as abandonment of service and may invite disciplinary proceedings.
- LOP days do not count towards eligibility for EL accrual or annual increment cycles.

16. Leave Encashment

- Only accumulated Earned Leave (up to the 45-day cap) is encashable.
- Encashment is processed at the time of full and final settlement upon separation.
- **Formula:** (Last drawn Basic + DA) $\div$ 30 $\times$ Number of EL days encashable.
- Encashment is paid out within 30 days of the last working day, subject to clearance of all dues and exit formalities.
- Casual Leave and Sick Leave are NOT encashable.

17. Unauthorised Absence & Disciplinary Action

- Absence without prior approval and without due intimation shall be treated as unauthorised absence and LOP.

- Repeated unauthorised absence may invite written warning, suspension, or termination as per the Disciplinary Policy.
- Continuous unauthorised absence of 5 or more working days may result in termination of services after due notice and inquiry.
- Falsification of medical certificates or other supporting documents shall be treated as gross misconduct.

18. Maintenance of Records & Compliance

- HR shall maintain a leave register for each employee in the format prescribed under the Bihar Shops & Establishments (Regulation of Employment & Conditions of Service) Act, 2025.
- Leave balances shall be visible to employees through the HR system at all times.
- Annual leave audits shall be conducted in December each year.
- All leave-related records shall be retained for a minimum period of 5 years.

19. Statutory Compliance & Conflict Resolution

This Policy is framed in accordance with applicable laws. In the event of any conflict between this Policy and prevailing law, the law shall prevail. Should any provision of law (including labour codes) be amended, the corresponding clauses of this Policy shall be deemed modified to that extent.

Specifically, this Policy is governed by:

- The Bihar Shops & Establishments (Regulation of Employment & Conditions of Service) Act, 2025
- The Maternity Benefit Act, 1961 (as amended in 2017)
- The Industrial Employment (Standing Orders) Act, 1946 (where applicable)
- The Code on Wages, 2019, and other labour codes upon notification

20. Policy Review & Amendment

- This Policy shall be reviewed annually by the HR Department, or earlier in case of statutory amendments.
- The Company reserves the right to modify, amend, or rescind any provision of this Policy at its sole discretion, subject to statutory minima.
- All amendments shall be communicated in writing to employees and shall take effect from the date specified in the amendment notice.
- No amendment shall reduce existing leave benefits below the statutory minima prescribed by law.

21. Grievance Redressal

Any employee with a concern, query, or grievance relating to the application of this Policy may:

6. Discuss the matter with their Reporting Manager.
7. Escalate to the Human Resources Department in writing if not resolved at the first level.
8. Approach the Director / Authorised Signatory if the issue remains unresolved at the HR level.

All grievances shall be acknowledged within 3 working days and resolved within 15 working days.

22. Interpretation & Disclaimer

This Policy does not form part of the contract of employment but represents the Company's current practice. The Company reserves the right to interpret the provisions of this Policy, and any disputes arising out of such interpretation shall be resolved by the Director / Authorised Signatory, whose decision shall be final and binding.

ACKNOWLEDGEMENT & APPROVAL

Approved By:

Issued By:

Director / Authorised Signatory
Prishal Technolabs Pvt Ltd

Head – Human Resources
Prishal Technolabs Pvt Ltd

Date: _____

Date: _____

Employee Acknowledgement

I have read and understood the Leave Policy of Prishal Technolabs Pvt Ltd and agree to abide by its provisions.

Employee Name: _____

Employee ID: _____

Designation: _____

Signature: _____

Date: _____

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